

February 27, 2010



U.S. Department  
of Transportation

East Building, PHH – 30  
1200 New Jersey Avenue, Southeast  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 8472  
(TENTH REVISION)

|                                   |
|-----------------------------------|
| EXPIRATION DATE: January 31, 2014 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Ohmart/VEGA Corporation  
Cincinnati, OH
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the use of non-DOT specification containers to transport Argon, compressed. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302a(a) in that a non-DOT specification container is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Ohmart/VEGA Corporation dated January 29, 2010, submitted in accordance with § 107.109.

**February 27, 2010**6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| <b>Hazardous Materials Description</b> |                               |                              |                      |
|----------------------------------------|-------------------------------|------------------------------|----------------------|
| <b>Proper Shipping Name</b>            | <b>Hazard Class/ Division</b> | <b>Identification Number</b> | <b>Packing Group</b> |
| Argon, compressed                      | 2.2                           | UN1006                       | N/A                  |

7. SAFETY CONTROL MEASURES: Prescribed packaging is a non-DOT specification, metal, single trip, inside container, described as a detector or ionization chamber, having a design (operating) pressure of 300 psig and an 85 cubic inch maximum water capacity. The detector assembly must comply with drawing numbers C-32547 dated 6/8/78, C-36304 dated 6/2/80, C-24556 dated 4/21/76, and undated C- 20138, submitted with Ohmart Corporation's application on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA). Also, detector assemblies identified as Model LN (Drawing D 22868, dated 4/16/74) and Model LNS (Drawing C-41129, dated 5/20/85) may be shipped under this special permit. The detector assemblies must be shipped in a suitably suspended and cushioned strong outside container. The design burst pressure of the detectors must be:

a. Three times the design pressure if equipped with a relief device; or

b. Four times the design pressure if not equipped with a relief device.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS:
- a. A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
  - b. Except when offered for transportation by air;
    - (1) Packages covered by this special permit are excepted from the labeling requirements of 49 CFR Part 172.
    - (2) Shipments are not subject to the placarding requirements of Subpart F of 49 CFR Part 172.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie

Acting Associate Administrator for Hazardous Materials Safety  
Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln